

THE STATE OF TEXAS
VS.

KATHRYN CAMILLE MURRAY
1820 WEST 14 1/2 STREET
HOUSTON, TX 77008

02606179

SPN:
DOB: WF 03-29-1983
DATE PREPARED: 7/2/2012

D.A. LOG NUMBER: 1870437
CJIS TRACKING NO.:

BY: EG DA NO: 065427500
AGENCY: SBI
O/R NO: 201202389
ARREST DATE: TO BE

NCIC CODE: 1199 01

RELATED CASES: SAME DEF-2 FEL

FELONY CHARGE: **Improper Relationship with Student**

CAUSE NO:

HARRIS COUNTY DISTRICT COURT NO:

FIRST SETTING DATE:

1353052

209

BAIL: \$50,000

PRIOR CAUSE NO:

FILED
Chris Daniel
District Clerk

JUL 02 2012
16:10

Harris County, Texas
Time: By:

IN THE NAME AND BY AUTHORITY OF THE STATE OF TEXAS:

Before me, the undersigned Assistant District Attorney of Harris County, Texas, this day appeared the undersigned affiant, who under oath says that he has good reason to believe and does believe that in Harris County, Texas, **KATHRYN CAMILLE MURRAY** hereafter styled the Defendant, heretofore on or about **FEBRUARY 9, 2012**, did then and there unlawfully while an employee of a public secondary school, and while holding a certificate issued as provided by Subchapter B, Chapter 21, of the Texas Education Code, intentionally and knowingly engage in sexual intercourse with **JIMMY JOSUE PALLAIS**, hereinafter called the Complainant, a person that the Defendant knew was enrolled in a public secondary school in the same school district as the school where the Defendant worked.

PROBABLE CAUSE:

Affiant, Robert E. King, is a certified peace officer employed with the Spring Branch Independent School District Police Department. Affiant believes and has reason to believe that Kathryn Camille Murray, a white female, DOB: 03/29/83, hereinafter styled the Defendant, committed the offense of **SEXUAL ASSAULT OF A CHILD** on or about February 7, 2012, and on February 10, 2012, both incidents occurring in Harris County, Texas. Affiant also believes and has reason to believe that the Defendant committed the offense of **IMPROPER RELATIONSHIP BETWEEN EDUCATOR AND STUDENT** on or about February 9, 2012, in Harris County, Texas. Affiant bases his belief on the following:

On February 23, 2012, Affiant charged the Defendant with **SEXUAL ASSAULT OF A CHILD UNDER 17 YEARS OF AGE** for engaging in an act of sexual intercourse with the Complainant, Jimmy Josue Pallais, a 15-year-old male student in the eighth grade at Memorial Middle School. That offense occurred on February 11, 2012, at the Complainant's residence at 12502 Mooremeadow Lane in Harris County, Texas (Cause No.: 1338149). During his investigation of this offense, Affiant established that the Complainant knows the Defendant by name and by sight and that the Defendant was the Complainant's teacher at Memorial Middle School at the time the offense was committed.

Affiant spoke with the Complainant's parents, Alejandro and Jenny Pallais, who are both credible and reliable persons. Mr. and Mrs. Pallais stated that the Complainant admitted to them on May 24, 2012, that he had engaged in sex with the Defendant on three occasions prior to the incident at their residence on February 10, 2012. Mr. and Mrs. Pallais stated that the Complainant told them he had sex with the Defendant twice in the Defendant's classroom at Memorial Middle School, which is located 12550 Vindon Drive in Harris County, Texas. Further, Mr. and Mrs. Pallais stated that the Complainant told them he had sex with the Defendant at a hotel near their home on February 10, 2012, the night a dance was held for eighth grade students at Memorial Middle School. Mr. Pallais confirmed with the Complainant that the hotel is across the street from a Fuddrucker's Restaurant that is near the Pallais home. Mr. Pallais told Affiant that his wife drove to the hotel at the location described by the Complainant and identified it as the Candlewood Suites Hotel at 10503 Town & Country Way in Harris County, Texas.

On May 30, 2012, bilingual forensic interviewer Tasha Rogers-James interviewed the Complainant at the Children's Assessment Center. Rogers-James interviewed the Complainant in Spanish, the Complainant's native language. Affiant monitored the interview via closed circuit television with Carol A. Calvo-Cota, a professional translator utilized by the Children's Assessment Center. Calvo-Cota translated the ongoing interview to Affiant. Rogers-James established that the Complainant knows the difference between telling the truth and a lie. The Complainant told Rogers-James he kissed the Defendant on the Monday before the school dance which was held on a Friday in February. The Complainant stated that he and the Defendant engaged in sex in the Defendant's classroom on two subsequent days that week. The Complainant stated that he went to the Defendant's classroom after school to study. The Complainant stated that he and the Defendant were kissing. The Complainant stated that he got on top of the Defendant on the floor in a corner of the room. The Complainant stated that he penetrated the Defendant's vagina with his penis on both occasions. The Complainant stated that he used protection. The Complainant estimated that both of these incidents occurred at about 4:30 to

videos from the camera outside the Defendant's classroom and saw that the Complainant exited the room at 5:15 p.m. on Tuesday, February 7, 2012, and that the Defendant exited the room at 5:21 p.m. that date. Affiant saw that the Complainant and the Defendant exited the room together at 6:01 p.m. on Thursday, February 9, 2012.

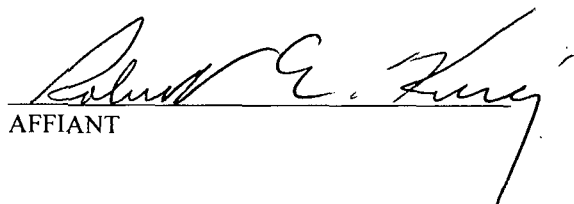
Also during his interview at the Children's Assessment Center on May 30, 2012, the Complainant stated that, after his father dropped him off at Memorial Middle School on the night of the dance, the Defendant picked him up in her car at a nearby church. The Complainant stated the Defendant drove him to a hotel near the school that the Defendant told the Complainant she knew of. The Complainant stated that he and the Defendant went to a hotel room on an upper floor, the room having already been paid for by the Defendant. The Complainant stated the Defendant unlocked the door to the hotel room. The Complainant stated that, once inside the room, he kissed the Defendant, undressed her, and then penetrated her vagina with his penis. The Complainant stated that, after he and the Defendant left the hotel, the Defendant drove him back to the vicinity of the school where he got out of her car and walked about 100 meters back to the school. Lisa Weir, the principal of Memorial Middle School, who is known to Affiant as a credible and reliable person, told Affiant that the eighth grade dance took place on Friday, February 10, 2012, from 6:30 p.m. to 8:30 p.m. Alejandro Pallais told Affiant that he drove the Complainant to the school for the dance on that date and dropped him off at 6:30 p.m.

Tanja Evans, the manager for the Candlewood Suites Hotel at 10503 Town & Country Way, allowed Affiant to review the hotel's surveillance videos. Accounting for an incorrect date/time display on the video-the date reading three days prior to the actual date-Affiant watched a recording of the Defendant as she checked in at the registration desk on the evening of February 10, 2012. Affiant watched a recording of the Complainant and the Defendant entering a side door of the hotel 46 minutes after the Defendant checked in. Affiant watched a recording of the Complainant and the Defendant exiting the same side door an hour and ten minutes later.

Marianne Cribbin, the Executive Director of Human Resources and the Custodian of Records for all personnel matters at the Spring Branch Independent School District, supplied Affiant with records that indicated the Defendant was employed by the District as a Language Arts teacher at Memorial Middle School during the commission of these repeated acts of sexual intercourse with the Complainant. Lisa Weir supplied Affiant with records that indicated the Complainant was enrolled in the eighth grade at Memorial Middle School where the Defendant was the Complainant's English language support teacher. Affiant obtained a copy of a Texas Educator Certificate in the Defendant's name and issued by the State Board of Educator Certification. The certificate specifies that the Defendant was authorized to perform the duties of a Classroom Teacher in English Language Arts and Reading, grades 8-12, and English as a Second Language Supplemental, grades 8-12, during the 2011-2012 school year.

AGAINST THE PEACE AND DIGNITY OF THE STATE.

Sworn to and subscribed before me on **July 2, 2012**


AFFIANT


ASSISTANT DISTRICT ATTORNEY BAR NO. 2404587
OF HARRIS COUNTY, TEXAS.

COMPLAINT

COPY OF COMPLAINT/WARRANT DELIVERED TO

Officer's name: ROBERT E. KING

Police agency: SPRING BRANCH ISD PD

Phone no: 832- date/time: 7-2-12 1637

124-8457